

Line 7

Case Name: *City of Sunnyvale v. Rosella Montoya Lopes, et al.*

Case No.: 24CV451323

*See **Order*** above. (As the Court dismissed without prejudice this receivership action on agreement of all parties [including Mr. Nigro, whom the Court first appointed as Successor in Interest to the deceased Defendant Lopes] at the July 8, 2026 Case Management Conference [*see* 07/08/2026 Minute Order], this Motion objecting to the November 26, 2026 Receiver's Report is **VACATED as MOOT.**)

Line 8

Case Name: *Vimal Kohli v. Vishal Saxena, et al.*

Case No.: 25CV456459

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Vimal Kohli (“Plaintiff”) moves under Code of Civil Procedure Section 473(b) on both mandatory and discretionary grounds to set aside the Court’s Order entered on November 26, 2025, which among other things Sustained Without Leave to Amend Defendant’s Demurrer to Plaintiff’s First Amended Complaint (“FAC”). Notice of Motion (the “Motion”) at 1:25-2:2 (filed: Jan. 22, 2026). Plaintiff asserts that this relief is warranted because Plaintiff’s failure to timely file opposition papers (to Defendant’s Demurrer and Defendant’s Motion to Strike Portions of Plaintiff’s First Amended Complaint) was the result of mistake, inadvertence, surprise, and excusable neglect. *Id.* at 2-3.

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The Court agrees with most, but not all, of the arguments made in Plaintiff’s Reply papers.

First, the Court agrees with Plaintiff that the Court’s Order entered on November 26, 2025, which among other things Sustained Without Leave to Amend Defendant’s Demurrer to Plaintiff’s FAC, is, ought to be, and will here be treated as a *dismissal* for purposes of the analysis under Code of Civil Procedure Section § 473(b). Pl. Sur-Reply In Support of Motion (“Reply”) at 4:9-6:23. Sustaining the demurrer *without* leave to amend ended Plaintiff’s claims and case.

And because the Court rules that its November 26, 2025 Order Sustaining the Demurrer Without Leave to Amend is a dismissal for purposes of the Section 473(b) analysis, it follows as a matter of logic and law that the mandatory provision of Section 473(b) applies here: “the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorneys’ sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect, vacate any . . . (2) resulting . . . *dismissal* . . . entered against the attorney’s client[.]” C.C.P. § 473(b) (emphasis added).

Having found the mandatory relief provision applies here, the Court further agrees with Plaintiff that “[t]he mandatory relief provision requires only that the attorney submit a declaration stating [under oath] that the default or dismissal was caused by the attorney’s mistake, inadvertence, surprise, or neglect.” Reply at 7:17-18.